WHY CASES COLLAPSE IN COURT

- Reliance on coerced confessions instead of independent evidence
- Contaminated or poorly preserved crime scene evidence
- Inadequate forensic support due to understaffed labs
- Shortage of trained investigating officers, juggling law and order with complex cases
- Judicial backlog and shortage of judges, prolonging trials
- Hostile witnesses due to threats, inducements or delays; weak witness protection mechanisms
- Inexperienced or poorly paid prosecutors
- Poor coordination between police and prosecution, weakening case presentation

ROAD TO REFORM

This is the terrain the new criminal laws—the Bharatiya Nyaya Sanhita (BNS) and the Bharatiya Nagarik Suraksha Sanhita (BNSS)—seek to reshape. Together, they constitute the most sweeping overhaul of policing and criminal procedure since Independence. One of the most consequential changes is the mandatory audio-visual recording of searches and seizures under Section 105 of the BNSS. Delhi Police have already deployed bodycams. If replicated nationally, such recordings will help corroborate police claims and deter allegations of tampering.

The BNSS also makes it mandatory to involve forensic experts in all cases involving offences punishable with seven years or more. Many states have begun appointing district-level crime scene officers trained at the national police academy. Going a step further, Haryana and Odisha have introduced mobile forensic units and cyber tools to support on-ground officers. Section 193 of the BNSS also allows police to electronically transmit charge-sheets and case files, a measure intended to cut logistical delays and align investigators with prosecutors. Even electronic evidence—from CCTV clips to WhatsApp chats—is formally recognised in court.

Training and oversight have received renewed focus. Investigating officers are now being put through structured modules on evidence-gathering, digital tools and victim sensitivity. For serious offences, senior officers must personally monitor investigations and submit monthly review reports to district magistrates and oversight boards. The new laws also introduce strict deadlines. For instance, judgments should be delivered within 30 days of the close of arguments, extendable to 45 days if valid reasons are recorded.

Meanwhile, a large-scale, technology-driven infrastructure push is underway. The Crime and Criminal Tracking Network & Systems (CCTNS) has been rolled out to digitise and streamline crime records nationwide, while the Inter-operable Criminal Justice System 2.0 (ICJS 2.0) strengthens IT integration across police, courts, prosecution departments, prisons and forensic units. Backed by Rs 1,448.5 crore in central funding, the initiative follows a 'One Data, One Entry' model—ensuring evidence collected at the scene is seamlessly accessible to prosecutors and courts. "Earlier, we had to rely on witnesses to sign seizure documents, some of whom later turned hostile or inconsistent. Now, every detail is uploaded to e-Sakshya (for tamper-proof evidence capture) and instantly available to the courts," says Prakash Medhi, additional SP (HQ), Sivasagar, Assam.



"Given the dire shortage of judges, delays are inevitable. The longer a case drags on, the greater the opportunity for witnesses to be threatened or influenced"

SOUMYAJIT RAHA
Advocate, Calcutta High Court

The Centre has also invested over Rs 2,000 crore in modernising forensic laboratories and launched e-Forensics to connect labs nationwide. The initiative helps states upgrade facilities, procure mobile forensic vans and expand educational infrastructure to train qualified experts.

Yet the fate of these reforms rests on a hard truth: meaningful change requires political will. For decades, committees have proposed similar structural fixes. In 2006, the Supreme Court's ruling in the Prakash Singh case attempted to hardwire them through a seven-point directive, including the creation of independent police complaints authorities and separation of investigation from law-and-order duties in high-crime districts. Almost 20 years on, compliance remains patchy or diluted. Without a genuine commitment from the political leadership to overhaul the system, justice in India will continue to move in slow motion—defined by the familiar spectacle of dramatic arrests followed by agonising acquittals. ■

—with Arkamoy Datta Majumdar, Dhaval S. Kulkarni & Jumana Shah